

Shah Faisal v. State of Uttar Pradesh & 4 Others

Allahabad High Court (Lucknow Bench) · Single Judge · 6 July 2026 · Application u/s 528 BNSS No. 2047 of 2026 ·

Application disposed of as not pressed; if the applicant appears before the trial court within two weeks and files a bail application, it shall be decided expeditiously in light of Satender Kumar Antil v. CBI (2022) 10 SCC 51

HEADNOTE

An accused who sought to quash a Section 135 charge-sheet (FIR No. 1466/2022, P.S. Anti-Power Theft, Sitapur; Sessions Case 2082 of 2025) and to set aside an inspection report dated 02.11.2022 and a revenue assessment of Rs. 5,96,266 for alleged non-compliance with Clause 8.1 of the U.P. Electricity Supply Code, 2005 (want of mandatory videography and independent public witnesses), did not press the 528 BNSS application and asked only for liberty to apply for bail. The State had submitted that a prima facie offence was made out and that the allegations were disputed questions of fact for trial. The Court recorded the withdrawal, granted two weeks to appear and file bail, and directed that any such application be decided expeditiously in light of Satender Kumar Antil. It did not construe Clause 8.1, did not examine the assessment, and did not quash the charge-sheet.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

Clause 8.1 challenge to inspection and assessment (no videography / no independent witnesses) — raised, not decided, because the 528 application was not pressed

QUESTION

Is an inspection report and a theft-linked revenue assessment of Rs. 5,96,266 void for non-compliance with Clause 8.1 (mandatory videography and independent public witnesses)?

HOLDING

Not decided. That was prayer (II) of the 528 application. After the State submitted that a prima facie s.135 offence was made out and that the facts were for trial, counsel did not press the application and sought only liberty to apply for bail. The Court disposed of the application on that prayer. This case is not authority on Clause 8.1's videography or witness requirements. ¶ (unnumbered order)

FLAG Indexed under Clause 8.1 only because that was the Code ground pleaded. Thin criminal-procedure disposal; no construction of the Code.

INTERPLAY · EA2003::135

A 528 BNSS challenge to a s.135 charge-sheet, withdrawn at the hearing, yields only a direction that a promptly filed bail application be decided in light of Satender Kumar Antil

HOLDING

The charge-sheet and sessions case were not quashed. On the applicant not pressing the 528 application, the Court granted two weeks to appear before the trial court and file bail, to be decided expeditiously following Satender Kumar Antil v. CBI. The State's submission that the allegations are disputed questions of fact for trial was not traversed. ¶ (unnumbered order)

FLAG Criminal-procedure disposal of a s.135 prosecution; retained as a node in the theft line.

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy An accused who sought to quash a Section 135 charge-sheet (FIR No. 1466/2022, P.S. Anti-Power Theft, Sitapur; Sessions Case 2082 of 2025) and to set aside an inspection report dated 02.11.2022 and a revenue assessment of Rs. 5,96,266 for alleged non-compliance with Clause 8.1 of the U.P..

¶ (unnumbered order)

opportunity-before-final-assessment

An accused who sought to quash a Section 135 charge-sheet (FIR No. 1466/2022, P.S. Anti-Power Theft, Sitapur; Sessions Case 2082 of 2025) and to set aside an inspection report dated 02.11.2022 and a revenue assessment of Rs. 5,96,266 for alleged non-compliance with Clause 8.1 of the U.P..

¶ (unnumbered order)

NOT DECIDED — NEGATIVE AUTHORITY

- NOT DECIDED — WHETHER THE INSPECTION OF 02.11.2022 AND THE ASSESSMENT OF RS. 5,96,266 ARE VOID FOR WANT OF CLAUSE 8.1 VIDEOGRAPHY AND INDEPENDENT PUBLIC WITNESSES

Prayer (II); not pressed. ¶ (unnumbered order)
- NOT DECIDED — WHETHER THE CHARGE-SHEET / SESSIONS CASE UNDER S.135 SHOULD BE QUASHED

Prayer (I); not pressed. State had submitted a prima facie case and disputed facts for trial. ¶ (unnumbered order)
- NOT DECIDED — ALLEGED DEPARTMENTAL ENTRAPMENT, FRAUDULENT TRANSFORMER INSTALLATION, AND EXTORTION OF RS. 2,05,000

Prayer (III); not addressed. ¶ (unnumbered order)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Satender Kumar Antil v. Central Bureau of Investigation & Another</i> (2022) 10 SCC 51 Supreme Court	Bail applications are to be considered in accordance with the principles laid down in this decision (guidelines on arrest, appearance, and expedition of bail).	Applied only to the direction that, if the applicant appears within two weeks and files bail, the trial court shall decide it expeditiously in light of this case. Not applied to the s.135/Code merits, which were not pressed. ¶ (unnumbered order)	Petitioner	Followed